

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and
OMNI LOGISTICS LLC,
RESPONDENTS.

**[PROPOSED] FIRST AMENDED VERIFIED COMPLAINT
PURSUANT TO 46 U.S.C. § 41301(a)**

Complainant TPG PRESSURE INC. (“Complainant” or “TPG”), by its undersigned attorneys, files this *First Amended Verified Complaint Pursuant To 46 U.S.C. § 41301(a)* (the “Amended Complaint”) against Epic Freight Solutions LLC (“Epic”) and Omni Logistics, LLC (“Omni”; Omni and Epic together are “Respondents”), seeking reparations for injuries to TPG caused by Respondent’s unjust and unreasonable practices in connection with billing demurrage and other charges in violation of Shipping Act of 1984, 46 U.S.C. § 40101, *et. seq.* as amended by the Ocean Shipping Reform Act of 2022 as applicable, and regulations thereunder including, but not limited to, 46 CFR part 545, and the principles set forth in Interpretive Rule on Demurrage and Detention Under the Shipping Act, 46 CFR § 545.5.



I. PARTIES

1. TPG is a corporation organized under the laws of the State of Texas with a principal place of business at 1003 Macarthur Blvd, Grand Prairie, TX 75050, with an email address at bmalkenhorst@thompsonpipegroup.com.

2. The names and addresses of the attorneys representing the Complainant are: (1) Tiffany N. Compres, FisherBroyles LLP, 1221 Brickell Avenue, Suite 900, Miami, Florida, tiffany.compres@fisherbroyles.com, and (2) Gene M. Burd, FisherBroyles LLP, 1200 G Street NW, Suite 800, Washington, D.C. 20005, gene.burd@fisherbroyles.com.

3. Upon information and belief, Epic Freight Solutions LLC at all relevant times was and is a limited liability company organized under the laws of the State of Wyoming with its current mailing address at 3200 Olympus Blvd., Suite 420, Dallas, Texas 75019.

4. Upon information and belief, Omni Logistics LLC at all relevant times was and is a limited liability company organized under the laws of the State of Delaware with its current mailing address at 3200 Olympus Blvd., Suite 420, Dallas, Texas 75019.

5. At all relevant times, Epic was and is a licensed non-vessel-operating common carrier (NVOCC), License No. 027656, within the meaning of 46 U.S.C. § 40102(17).

6. At all relevant times, Omni was and is a licensed non-vessel-operating common carrier (NVOCC), License No. 18469, within the meaning of 46 U.S.C. § 40102(17).

7. At all relevant times, Epic and Omni were “common carriers” within the meaning of 46 U.S.C. § 40102(7) or “ocean transportation intermediaries” within the meaning of 46 U.S.C. § 40102(20), subject to regulation by the Federal Maritime Commission (the “Commission”). The

email addresses currently known for both Respondents are dkinney@omnilogistics.com and bheathcock@omnilogistics.com.

II. JURISDICTION

8. The Commission has subject-matter jurisdiction over this Amended Complaint pursuant to the Shipping Act of 1984.

9. This Amended Complaint is being filed pursuant to 46 U.S.C. § 41301(a).

10. The Commission has personal jurisdiction over Respondents as “common carriers,” as defined in 46 U.S.C. § 40102(7), and as a licensed “non-vessel-operating common carrier,” as defined in 46 U.S.C. § 40102(17).

11. Respondents’ actions alleged herein constitute: (1) failures by Respondents to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of TPG, in violation of 46 U.S.C. § 41102(c) and 46 C.F.R. §§545.4 and 545.5; and (2) unreasonable refusal to deal or negotiate with TPG, in violation of 46 U.S.C. Section 41104(a)(10).

III. FACTUAL ALLEGATIONS

12. TPG is a supplier and installation contractor of concrete, steel, fiberglass, and polymer pipes and structures used for drainage, sanitary, pressure, and trenchless applications. Products used by TPG are imported from outside the United States, including from such countries as Turkey, Colombia, and others.

13. TPG relied on Epic to provide transportation services to provide carriage of products, including containerized cargo, from ports outside the United States to ports in the United

States or to TPG's job sites in the United States through ports in the United States via ocean carriage. The services were provided on the basis of purchase orders, which listed freight services and their prices, and which were issued by TPG to Epic. The invoices for services were issued by Epic to TPG.

14. In or about the summer of 2021, Epic informed TPG that it was partnering with Omni as Omni's wholly owned subsidiary. Epic also informed TPG that it was "rebranding to Omni Logistics LLC" and that its headquarters were now in Dallas, Texas, instead of in California. At about the same time, Epic's invoices started listing payment directions to Omni. Epic's personnel with whom TPG communicated did not change and remained the same.

15. In or about the spring of 2022, TPG started issuing purchase orders for [ocean and land?] freight services to Omni, and Omni started issuing invoices to TPG in its own name. The personnel with whom TPG communicated did not change. For example, David Ikemoto, the former Epic's Director of International Operations, became Omni's Logistics Director of International Operations.

16. At all relevant times, Respondents held themselves out to the general public to provide transportation by water of passengers or cargo between the United States and a foreign country for compensation and assumed responsibility for the shipment of cargo in its own name. In particular, and without limitation:

- a. Respondents obtained licenses to operate as NVOCC from the Commission.
- b. Respondents maintained a copy of their tariffs for public review as required by the Commission's regulations.
- c. Respondents did not disclose that they acted on behalf of a NVOCC or VOCC subject to such NVOCC or VOCC's control.
- d. Respondents maintained public websites where they advertised their shipping and freight services as "all in" or "door-to-door" for international shipping needs. See

Exhibit A. That evidence that Respondents assume the responsibility for the shipment of cargo in their own name.

- e. Respondents provided shipping quotations based on “door-to-door” terms from places outside the United States to places within the United States, which represented that they would assume the responsibility for the shipment of the cargo.
- f. Omni’s Terms and Conditions, which Omni published on its own behalf and on behalf of its subsidiaries, stated that Omni acted as an independent contractor in performing or procuring services for customers and not an agent of customers. *See* Exhibit B, ¶¶ 1(b), 2. Accordingly, Omni and its subsidiaries assumed responsibility for the shipment of cargo in its own name.
- g. Omni’s Terms and Conditions attempted to limit its and its subsidiaries’ liability for the ocean shipment of cargo under the Hague Rules and Hague-Visby Rules applicable to ocean carriers. *See* Ex. B ¶ 5.
- h. Omni’s Terms and Conditions provide for the procedure for claims against Omni for loss or damage to cargo, which evidences that Omni (including its subsidiaries as provided by the Terms and Conditions) assumed the responsibility for the shipment of cargo, including ocean transportation.
- i. Respondents’ quotations provided to TPG included shipment “door to door.” Based on these quotations and email exchanges, it was clear that Respondents would use ocean transportation to carry TPG’s cargo, that they would assume the responsibility for the transportation, and use a vessel to carry the cargo from places outside the United States to the United States.

17. Accordingly, for the purposes of its relationship with TPG, Respondents were common carriers within the meaning of the Shipping Act.

18. Neither Epic’s nor Omni’s quotations included information about “demurrage,” as defined by 46 CFR § 545.5, or provided information as to where information about demurrage can be found.

19. Neither Epic nor Omni informed TPG about their policies with respect to demurrage. Upon information and belief, Respondents have no such policies.

20. For all relevant shipments, Respondents conducted negotiations with ocean carriers, including, but not limited to, providing information about the cargo and parties, such as the shipper and consignee. TPG was not involved in such negotiations and had no prior knowledge of the identity of the ocean carrier and its policies with respect to demurrage.

21. In or about November 2021, invoices issued to TPG began including demurrage, storage, and other charges that TPG found to be excessive. Moreover, these invoices failed to provide any explanation as to the reasons for such charges or provide information that would allow TPG to evaluate the validity of such charges. Applicable bills of lading were issued by various entities, including by agents on behalf of unnamed principals.

22. An incomplete list of invoices subject to this Amended Complaint is attached hereto as Exhibit B. TPG is in the process of gathering the necessary information and will submit a complete list of all invoices and bills of lading subject to the Amended Complaint as soon as possible. Respondents are in possession, custody, and control of all invoices and relevant information, and TPG expects to obtain them through discovery in this case.

23. Respondents' invoices and supporting documentation were utterly insufficient to enable TPG to assess the propriety of demurrage charges and to mitigate damages. In particular, the Respondents' invoices and supporting documentation failed to include the following information:

- a. Date when the respective container was made available;
- b. The allowed free time;
- c. The start date of free time;
- d. The end date of free time;
- e. The applicable detention or demurrage rule on which the daily rate was based;
- f. The applicable rate or rates per the applicable rule;
- g. Appropriate contact information for questions or requests for mitigation of fees;
and
- h. A statement that the charges are consistent with any of the Commission rules with respect to detention and demurrage.

24. Moreover, Respondents provided their invoices to TPG with up to four months' delay after the respective ocean carrier invoices were issued, making mitigation of damages

practically impossible. In some instances, Respondents even demanded payment on invoices that had never been provided to TPG.

25. During the process of the receiving, handling, storage, or delivery of cargo, Respondents failed to provide TPG with timely information regarding allowed free time, start date of free time, the end of free time, the applicable detention or demurrage rules, the applicable rates, which interfered with TPG's ability to receive the cargo free of unnecessary demurrage, storage, detention, and other charges, and caused delays in the shipment.

26. Further, the Respondents attempted to collect unreasonable and unsupported alleged debts from TPG by holding the cargo hostage. See Exhibit C.

27. Incredibly, just before the filing of the initial Complaint in this action, Respondents submitted TPG demurrage invoices for deliveries that took place in January 2022, which is a delay of nine months. At that point, TPG was powerless to do anything to avoid the alleged demurrage charges.

28. Even with the Respondents being on notice of the dispute, these belated invoices did not include copies of supporting bills of lading and other documents supporting the demurrage charges. Respondents also failed to explain why it took them nine months to prepare and submit TPG the demurrage invoices. Again, the belated information about demurrage charges denied TPG the ability to receive the cargo free of unnecessary demurrage, storage, detention, and other charges, and caused delays in the shipment.

29. Furthermore, some invoices inexplicably included up to nine days of chassis charges, where TPG's records indicated that containers and chassis were returned on the same day as they were delivered to the destination.

30. Despite the ongoing dispute regarding demurrage charges, and under objections, TPG paid in excess of \$860,000 for demurrage and other additional charges to Respondents so that Respondents would release the cargo.

31. The foregoing Respondents' practices began as early as about November 2021 and lasted until at least October 2022 and applied to at least 227 containers.

32. Respondents presently further demand that TPG pay an additional \$362,123.94 for alleged services and costs.

33. TPG repeatedly requested that Respondents provide information supporting these charges, but they refused. Moreover, Respondents terminated TPG's access to a shared internet location that hosted a file that tracked shipments and associated fees and costs. Accordingly, TPG is unable to verify the veracity of the charges Respondents have assessed.

34. In an attempt to resolve this matter, TPG, through its counsel, submitted to Respondents a demand for documentation supporting their charges. However, the Respondents, responding through counsel, refused to do so and once again demanded payment of the allegedly outstanding balance of \$362,123.94.

IV. VIOLATIONS BY RESPONDENTS

COUNT I – VIOLATION OF 46 U.S.C. § 41102(c)

35. TPG realleges each allegation above as if fully set forth herein.

36. Both Respondents are common carriers within the meaning of 46 U.S.C. § 40102(7) or ocean transportation intermediaries within the meaning of 46 U.S.C. § 40102(20).

37. Section 41102(c) requires a common carrier or ocean transportation intermediary “to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.”

38. Section 41102(c) applies to practices and regulations relating to demurrage and detention for containerized cargo. *See* 46 CFR § 545.5(b). For purposes of Section 545.5, the terms demurrage and detention encompass any charges, including “per diem,” assessed by ocean common carriers, marine terminal operators, or ocean transportation intermediaries (“regulated entities”) related to the use of marine terminal space (e.g., land) or shipping containers, not including freight charges.

39. The foregoing customary, continuous, and ongoing conduct by Respondents in connection with its respective receipt, handling, storage, and delivery of the property of TPG constitutes a failure by Respondents to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of TPG and other shippers, in violation of 46 U.S.C. § 41102(c).

40. The Commission has adopted an interpretive rule to establish guidance for determining whether practices with respect to demurrage and detention are unjust and unreasonable. *See* Docket No. 19-05, 46 C.F.R. § 545.5 (the “Interpretive Rule”). The Interpretive Rule, *inter alia*, provides that:

(c)*Incentive Principle*. In assessing the reasonableness of demurrage and detention practices and regulations, the Commission will consider the extent to which demurrage and detention are serving their intended purposes as financial incentives to promote freight fluidity.

(2) Particular Applications of Incentive Principle. -- (i) Cargo Availability. The Commission may consider in the reasonableness analysis the extent to which demurrage practices and regulations relate demurrage or free time to cargo availability for retrieval.

* * *

(iii) Notice of cargo availability. In assessing the reasonableness of demurrage practices and regulations, the Commission may consider whether and how regulated entities provide notice to cargo interests that cargo is available for retrieval. The Commission may consider the type of notice, to whom notice is provided, the format of notice, method of distribution of notice, the timing of notice, and the effect of the notice.

* * *

(d) Demurrage and detention policies. The Commission may consider in the reasonableness analysis the existence, accessibility, content, and clarity of policies implementing demurrage and detention practices and regulations, including dispute resolution policies and practices and regulations regarding demurrage and detention billing. In assessing dispute resolution policies, the Commission may further consider the extent to which they contain information about points of contact, timeframes, and corroboration requirements.

41. The facts asserted in this Amended Complaint establish that:

- a. Respondents failed “to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property;
- b. Respondents’ acts or omissions occurred on a normal, customary, and continuous basis;
- c. Respondents’ practice was unjust and unreasonable, in violation of application laws and regulations; and
- d. The practice or regulation is the proximate cause of the claimed loss.

COUNT II – VIOLATION OF 46 U.S.C. § 41104(a)(14)

42. TPG realleges each allegation above as if fully set forth herein.

43. 46 U.S.C. § 41104(a)(14) prohibits common carriers, either alone or in conjunction with any other person, from directly or indirectly:

[A]ssess any party for a charge that is inconsistent or does not comply with all applicable provisions and regulations, including subsection (c) of 46 U.S.C. § 41102 or part 545 of title 46, Code of Federal Regulations.

44. 46 U.S.C. § 41102(d) requires that invoices for demurrage or detention charges include the following accurate information:

- a. Date that container is made available;
- b. The port of discharge;
- c. The container number or numbers;
- d. The allowed free time in days;
- e. The start date of free time;
- f. The end date of free time;
- g. The applicable detention or demurrage rule on which the daily rate is based;
- h. The applicable rate or rates per the applicable rule;
- i. The total amount due;
- j. The email, telephone number, or other appropriate contact information for questions or requests for mitigation of fees;
- k. A statement that the charges are consistent with any of Federal Maritime Commission rules with respect to detention and demurrage; and
- l. A statement that the common carrier's performance did not cause or contribute to the underlying invoiced charges.

45. Invoices submitted by Respondents failed to include information required by law.

46. Failure by Respondents to include in the invoices information required by 46 U.S.C. § 41102(d) constitutes a failure to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property as provided by 46 U.S.C. § 41102(c).

47. The facts asserted in this Amended Complaint establish that:

- a. Respondents failed "to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property;
- b. Respondents' acts or omissions occurred on a normal, customary, and continuous basis;
- c. Respondents' practice was unjust and unreasonable in violation of applicable laws and regulations; and

d. The practice or regulation is the proximate cause of the claimed loss.

48. Accordingly, Respondents violated 46 U.S.C. § 41104(a)(14) by assessing TPG for charges that are inconsistent and do not comply with all applicable provisions and regulations.

49. Respondent's violations caused TPG damages in the form of unjust and improper charges and forced TPG to file this action.

COUNT III – VIOLATION OF 46 U.S.C. § 41104(a)(15)

50. TPG realleges each allegation above as if fully set forth herein.

51. 46 U.S.C. § 41104(a)(15) prohibits common carriers, either alone or in conjunction with any other person, from directly or indirectly:

[I]nvoice any party for demurrage or detention charges unless the invoice includes information as described in 46 U.S.C. § 41102(d) showing that such charges comply with—(A) all provisions of part 545 of title 46, Code of Federal Regulations (or successor regulations); and (B) applicable provisions and regulations, including the principles of the final rule published on May 18, 2020, entitled “Interpretive Rule on Demurrage and Detention Under the Shipping Act”.

52. 46 U.S.C. § 41102(d) requires that invoices for demurrage or detention charges include the following accurate information:

- a. Date that container is made available;
- b. The port of discharge;
- c. The container number or numbers;
- d. The allowed free time in days;
- e. The start date of free time;
- f. The end date of free time;
- g. The applicable detention or demurrage rule on which the daily rate is based;
- h. The applicable rate or rates per the applicable rule;

- i. The total amount due;
- j. The email, telephone number, or other appropriate contact information for questions or requests for mitigation of fees;
- k. A statement that the charges are consistent with any of Federal Maritime Commission rules with respect to detention and demurrage; and
- l. A statement that the common carrier's performance did not cause or contribute to the underlying invoiced charges.

53. Invoices submitted by Respondents failed to include information required by law.

Further, Respondents have no detention or demurrage policies.

54. Failure by Respondents to include in the invoices information required by 46 U.S.C. § 41102(d) constitutes a failure to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property as provided by 46 U.S.C. § 41102(c).

55. Respondents' failure to have a demurrage and detention policy is a key factor in consideration of such a violation under the Interpretive Rule on Demurrage and Detention Under the Shipping Act.

56. The facts asserted in this Complaint establish that:

- a. Respondents failed "to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property;
- b. Respondents' acts or omissions occurred on a normal, customary, and continuous basis;
- c. Respondents' practice was unjust and unreasonable in violation of applicable laws and regulations; and
- d. The practice or regulation is the proximate cause of the claimed loss.

57. Respondents violated 46 U.S.C. § 41104(a)(15) because they issued invoices that do not include information required by 46 U.S.C. § 41102(d) showing that such charges comply

with (A) all provisions of part 545 of title 46, Code of Federal Regulations and (B) applicable provisions and regulations, including the principles of the final rule published on May 18, 2020, entitled “Interpretive Rule on Demurrage and Detention Under the Shipping Act”.

58. Respondent’s violations caused TPG damages in the form of unjust and improper charges and forced TPG to file this action.

V. CAUSATION

59. The foregoing alleged acts and omissions of Respondents have directly and proximately injured TPG because TPG was forced to pay demurrage and other non-freight charges to Respondents on the basis of unsubstantiated invoices, and Respondents continue demanding that TPG pay additional charges on the basis of unsubstantiated invoices.

VI. COMPLAINANT’S DAMAGES

60. TPG has been and continues to be, actually and materially injured by Respondents’ continuous conduct in violation of the Shipping Act alleged herein.

61. Respondents’ violations alleged herein are causing direct, proximate, and ongoing financial damages to TPG in an amount already believed to exceed \$1,222,123 currently accruing, and to be further demonstrated in this proceeding.

VII. PRAYER FOR RELIEF

WHEREFORE, TPG respectfully requests that the Commission require Respondents to answer the charges made in this Amended Complaint and prays for relief from the Commission as follows:

1. An Order, after due investigation pursuant to 46 U.S.C. Sections 41302 and 41303 and a hearing pursuant to 46 U.S.C. Section 41304, finding that Respondents have violated 46 U.S.C. Section 41102(c) in connection with their respective receipt, handling, storage, and delivery of the property of TPG;
2. An Order (1) compelling Respondents to cease and desist from violations of the Shipping Act, and (2) putting in place lawful and reasonable practices to preclude Respondents from demanding that TPG pay unsubstantiated and unlawful charges.
3. An Order requiring Respondents to pay TPG reparations for the unlawful conduct alleged herein in an amount to be proven pursuant to 46 U.S.C. Section 41305, with interest pursuant to 46 U.S.C. Section 41305(a), TPG's reasonable attorneys' fees as "the prevailing party" pursuant to 46 U.S.C. Section 41305(e), and any other sum the Commission determines to be proper; and
4. Such other and further orders or relief as the Commission deems just and proper.

Dated: February __, 2023
Washington, D.C.

Respectfully submitted,

FISHERBROYLES LLP

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Counsel for Complainant
TPG Pressure, Inc.

VERIFICATION

Bezađ Basiri, General Manager-FRP Products of TPG Pressure, Inc., pursuant to 28 USC §1746, hereby declares under penalty of perjury that he has read the foregoing First Amended Verified Complaint and that the facts stated therein to the best of his knowledge, information, and belief is true and correct on information, belief, and upon information received from others.

Dated: February 9, 2023



Bezađ Basiri,
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EXHIBIT A



Ocean freight and overseas shipping solutions that are **ALL IN** for you.

Looking for an affordable ocean freight and overseas shipping solution? Omni is ready when you are. We have a robust network of carriers ready to deliver your goods from port to port. We also offer **warehousing and distribution**, as well as **ground freight** in countries around the globe. Look to Omni for integrated ocean freight and overseas shipping solutions that can be customized to fit your unique needs.

[CONTACT US](#)

866-AIR-OMNI

Ocean freight experience you can trust.

Omni has the kind of ocean freight experience that you expect from a leader. We are an experienced Non Vessel Operating Common Carrier (NVOCC) for all major international carriers. Through our global network of experienced professionals and discounted contract pricing, we provide an integrated solution of ocean freight services. As an ocean freight forwarder, Omni assigns cargo, arranges pickup and delivery locations and streamlines document management to guarantee the uninterrupted flow of goods.

Ocean freight transportation that does it all.

We offer a multitude of ocean freight transportation options, all designed and customized to fit your company's needs.

- Full Container Load Service (FCL)
- Less than Container Load Service (LCL)
- Multimodal Solutions
- Discounted Pricing Structures
- **Fragile and / or Oversized Equipment Moves**
- Specialized Container Services (e.g., Flat Rack, OOG, etc.)

- **Project Cargo (Oversized/Non-Containerized)**
- Customized Consolidation Programs
- Dangerous Goods Transportation
- Door-to-Port / Port-to-Door Services



- Container Security Devices Enabled by GPS
- Complete Documentation Services
- **Customs Brokerage Services**
- Cost Effective Ocean Cargo Insurance
- Container Security Devices Enabled by GPS
- Full or Partial Vessel Charters to Transport Heavy Shipments to Smaller Ports
- Consolidation Programs
- **Project Cargo** (Oversized/Non-Containerized)
- **EDI Shipment Tracking**
- Complete Documentation Services
- Expedited **Customs Clearance**
- Ocean Cargo Insurance

Part of a seamless supply chain program.

Since we understand getting your products across the water is only one step in your supply chain, Omni also offers a full suite of complementary 3pl logistics services such as **warehousing and distribution**, ocean to **cross dock** programs, and as complete domestic and **ground freight services** to ensure a seamless supply chain program.

Unrivalled customer service.

Experience an unparalleled level of customer service when shipping via ocean freight with Omni. We take great care of our clients, actively monitoring and reporting on all shipments, and providing a dedicated team for immediate answers and assistance.

- 24/7/365 Service
- All Shipments Constantly Monitored
- Dedicated Account Management Teams
- Custom Support Programs

The secure choice

The Omni team has the experience, security, reliability and speed to develop innovative solutions through our global network of experienced professionals and state-of-the-art technology. Our ocean freight services are tailored to meet the specific needs of any size company, from start-up ventures to multinational corporations.

- ISO 9001:2015 Certified
- **C-TPAT** Certified and Validated Broker and Consolidator
- Independent Quality Assurance Teams
- **Global Customs Brokerage** and **Trade Compliance** Support

When it comes to dependable ocean freight solutions, we're
ALL IN.
Get in touch today.

ALSO OF INTEREST Freight Forwarding Air Freight Logistics Global Customs and Compliance



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EPIC SERVICES

INTERESTED IN ANY OF OUR SERVICES? SAVE TIME, CLICK "GET A QUOTE" ABOVE.



EXPEDITED GROUND

Our cut for service ground network is a perfect solution for your time-sensitive needs. Use the weekends to your advantage - Thursday to Monday service to most points in the U.S.



TRUCKLOAD SERVICES

Navigating truckload brokerages can be overwhelming & time consuming. We have pre-screened for the best carriers. If your FTL needs require time sensitive moves, Epic Freight is your answer!



TRADESHOWS + EVENTS

Utilize Epic's complete service offerings to get your shipments where they need to be when they need to be there. We are considered experts in the event space, shipping to trade shows daily.



AIR FREIGHT

Every supply chain needs an air solution. We provide a service that will simplify the headaches for you. When you need to get your shipment to destination ASAP, we have the ability to help!



INTERNATIONAL

We provide a comprehensive solution for your international shipping needs. We go the extra mile to ensure your freight is both compliant and safe for it's vacation! Door to door - Door to Port.



LTL GROUND

Have time on your side? You may choose to use our cheaper LTL carriers. We have already done the rate negotiating for you! Take advantage of our connections and network.



FINAL MILE SERVICE

Our white glove services pay special attention to all of the final mile details. If you have a shipment that involves specific service requirements, we have a



BLANKET - PAD WRAP

Need help protecting your shipment? Epic provides blanket and pad wrap solutions nationwide. We also provide guidance on packaging your freight to prevent costly damages on your shipments.



WEIRD & WACKY

Have a shipment and you don't know where to start? Our team of experts constantly finds creative ways to move even the most unique of shipments. What can we say...we like a challenge!

FOLLOW



Note: Epic Freight Solutions has amended our Terms & Conditions. Click to view.

Sign up to get the latest on sales, new releases and more ...

Enter your email address...

Sign Up

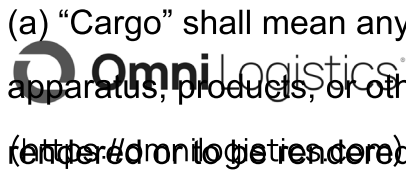
EXHIBIT B

Business Terms

Terms and Conditions of Service

The following Terms and Conditions of Service (“Terms and Conditions”) constitute a legally binding contract between Omni Logistics, LLC (hereinafter “Omni” or “Company”) and the “Customer.” Mach 1 is a division of Omni. These Terms and Conditions apply to all shipments of Cargo for which Omni makes arrangements for logistics or transportation, whether by air, water, rail, or motor carrier, and also apply to any other Services provided by Omni. In the event Omni renders Services and issues a document or enters into an executed agreement relating to the provision of Services that contains terms and conditions that vary from those set forth herein, the provisions in such other document/agreement shall govern to the extent of any conflict with these Terms and Conditions. Otherwise, the following Terms and Conditions shall govern any Services rendered by Omni. These Terms and Conditions may be updated by Omni at any time so please check <https://www.omnilogistics.com/business-terms/> for the most current Terms and Conditions.

1. **Definitions.**

 (a) “Cargo” shall mean any goods, cargo, merchandise, raw materials, supplies, equipment, apparatus, products, or other property that relate to or are the subject of any Services rendered or to be rendered by, through, or under Omni Logistics, LLC. (tel:+1866241-866AIR-OMNI)

(b) “Company” shall mean Omni Logistics, LLC, its subsidiaries, affiliates, related companies, agents and/or representatives.

(c) “Customer” shall mean the person or entity for whom Omni renders Service and any agents or representatives of that person or entity, including, but not limited to, shippers, importers, exporters, carriers, secured parties, warehousemen, buyers, sellers, shipper’s agents, insurers and underwriters, break-bulk agents, and consignees. It is the responsibility of the Customer to provide notice and copy(s) of these Terms and Conditions of Service to all such agents or representatives.

(d) “Documentation” shall mean all information received directly or indirectly from Customer, whether in paper or electronic form.

(e) “Force Majeure” shall mean and include, but is not limited to, flood, earthquake, storm, and other acts of God, fire, derailment, accident, strike, lockout, labor dispute, explosion, war or other violence, insurrection, terrorism or terroristic threats, riot or other civil unrest, embargo, act or order of government or governmental agency, shortage of power or any cause that is beyond the reasonable control of Omni or the Service Provider that accepts, handles, transports, stores, warehouses, and/or delivers Cargo, or otherwise provides Services.

(f) “Ocean Transportation Intermediaries” (“OTI”) shall include an “ocean freight forwarder” and a “non-vessel operating carrier.”

(g) “Service” or “Services” shall mean all handling, freight forwarding, brokerage, transportation, logistics, or other services relating to or involving the import, export, pick-up, handling, storage, warehousing, processing, packaging, transportation, and/or delivery of “Cargo” as defined herein.

(h) “Service Providers” shall include, but is not limited to: motor carriers, rail carriers, ocean carriers, truckmen, cartmen, lightermen, freight forwarders, brokers, OTIs, customs brokers, agents, warehousemen, and other contractors or subcontractors to whom Cargo is entrusted for the provision of Services relating to or involving the import, export, pickup, handling, storage, warehousing, processing, packaging, transportation, and/or delivery of Cargo, or who otherwise provide Services.

2. Company as Agent.

Omni acts as the “agent” of the Customer only for the purpose of performing duties in connection with the entry and release of goods, post entry services, the securing of export licenses, the filing of export documentation on behalf of the Customer and other dealings with Government Agencies; however, as to all other Services, Omni acts as an independent contractor in performing or procuring Services for Customer.

3. Customer Responsibilities.

(a) Customer is responsible for properly marking, packing, and labeling Cargo so it will safely withstand ordinary mechanical handling in transit and be in compliance with all laws, regulations, and requirements which may be applicable. Customer must provide proper shipping instructions and Documentation to enable Omni and any Service Providers to safely and securely provide the Services. Customer warrants to Omni that the description of all Cargo particulars, including, but not limited to, the weight, content, measure, quantity, quality, condition, marks, numbers, value and country or origin and destination are correct. Unless otherwise agreed in writing, Customer is responsible for proper loading and unloading of the Cargo onto Omni’s or Service Provider’s equipment. **Customer shall indemnify and hold harmless Omni from all fines, penalties, or damages resulting from Customer’s breach of this provision.** Uncrated, unprotected or improperly packaged Cargo is handled on a “hold harmless” basis and liabilities will not be assumed by Omni in the event of damage to any Cargo.

 (b) Omni accepts shipments on an outer-pack level and does not recount or inspect inner-packs or their internal contents unless it specifically agrees to do so in an executed Statement of Work (SOW). The internal content of the shipment is considered as “Said to Contain” (STC) and/or “Shipper Load and Count” (SLC). It is recommended that for high risk shipments such as high value or vulnerable commodities, Customer utilize tamper evident packaging or tape or other means to further protect the Cargo. Any disturbance to this tamper evident packaging or tape must be noted on the delivery receipt at the time of delivery.

(c) Customer shall comply with all applicable laws, customs requirements, and other governmental regulations of any country to, from, through, or over which the Cargo may be carried, including those relating to the packaging, carriage, or delivery of the Cargo, and Customer shall furnish such information and attach such documents to the waybill as necessary to comply with any of such laws, customs, and regulations. Customer is responsible to assign a customs broker for customs clearance. Customer shall comply with, and is responsible for paying, all duties, taxes, fines, and expenses associated all requirements of customs, port, and other authorities. Customer is also solely responsible for all losses and damages incurred or suffered due to any illegal, incorrect, or insufficient marking, numbering, or addressing of the Cargo, or caused by Customer’s failure to comply with any laws, customs regulations, port requirements, or other governmental regulations. **Omni shall not be liable for loss, damage, delay, detention, storage or other expenses arising out of the Customer’s failure to comply with any such laws, customs requirements, or regulations of any governmental authority.**

(d) Any article susceptible to damage by ordinary handling must be adequately protected by Customer by proper packing and must be marked or bear appropriate labels. If a container has been loaded or stuffed by or on behalf of Customer, Omni is not liable for loss of or damage to Cargo caused by the manner in which a container was loaded or stuffed, nor is Omni liable for any loss or damage to Cargo: (i) caused by the unsuitability of the Cargo for carriage in such container(s); (ii) caused by the unsuitability or defective condition of the container; or (iii) that would have been apparent upon reasonable inspection by Customer at

or prior to the time when the container was loaded or stuffed. **Customer shall defend, indemnify and hold harmless Omni from and against any loss, damage, claim, liability, or expense caused by or arising from Customer's failure to meet the requirements of this subsection or due to any of the matters described in (i)-(iii) above.**

(e) Unless otherwise disclosed in writing by Customer and accepted in writing by Omni, Customer warrants that Cargo tendered or delivered to Omni in furtherance of any Services does not contain or constitute hazardous materials or dangerous goods. Customer agrees to notify Omni in advance of Customer's intent for Omni to handle or transport any dangerous goods or hazardous material in any shipment, and agrees to properly classify and describe the Cargo, and to provide Omni with all necessary or useful information for the safe storage and handling of the Cargo, including, but not limited to, Material Safety Data Sheets and/or Product Safety Data Sheets. Customer represents that in the event any Cargo it tenders or causes to be tendered to Omni is classified as dangerous goods by the International Air Transport Association or hazardous material by the United States Department of Transportation or another governmental agency, such items, when tendered to Omni, shall be limited to materials and quantities authorized for air transportation (regardless of the routing or the mode by which the shipment is transported) and will be properly labeled, packaged and transportable under applicable rules, regulations, and laws of the federal, state and local jurisdictions and/or countries through which they are to be transported, as applicable.

(f) Customer agrees not to tender for transportation any Cargo which requires temperature control without giving prior written notice to Omni and without first obtaining Omni's written agreement to provide Services relating to such Cargo. Customer is responsible for providing Omni with specific requirements for any temperature sensitive transportation of Cargo. Omni is not liable or responsible for any loss of or damage to temperature sensitive Cargo arising from defects, derangement, breakdown, or stoppage of any temperature controlling machinery, equipment, plant, insulation, or apparatus. Omni will only be liable for loss or damage to temperature sensitive Cargo if Omni accepts the transportation of the temperature

sensitive Cargo in writing, was provided specific written instructions relating to such transportation by Customer, and fails to make reasonable efforts to meet such instructions by providing or procuring the required equipment.

4. Reliance on Information Furnished.

(a) Customer is required to review all Documentation and declarations prepared and/or filed with the Customs Service, any government agency, and/or any third party, and Customer will promptly advise Omni of any errors, discrepancies, incorrect statements, or omissions on any declaration or Documents filed on Customer's behalf.

(b) Customer has an affirmative, non-delegable duty to disclose any and all information required to import, export or enter all Cargo. In preparing and submitting customs entries, export declarations, applications, Documentation, and/or export data to the United States and/or a third party, Omni relies on the correctness of all Documentation and information furnished by Customer, whether in written or electronic form. **Customer shall indemnify and hold Omni harmless from any and all claims asserted, and/or liability or losses incurred, due to Customer's failure to disclose information or due to any materially incorrect or false statement by Customer upon which Omni reasonably relied.**

5. Remedies and Limitations of Liability.

(a) Customer agrees that Omni's liability to Customer and/or any customer, client, shipper, or consignee of Customer (a "Shipping Party") for Cargo lost or damaged shall be governed by the liability provisions contained in the following international conventions or statutes, as applicable and without limitation: the Convention for the Unification of Certain Rules Relating to International Carriage by Air, October 12, 1929 ("Warsaw Convention"), as amended by the Hague Protocol, September 28, 1955; the Montreal Protocol No. 4, September 25, 1975 ("Montreal Protocol"); the Montreal Convention, May 28, 1999 ("Montreal Convention"); the International Convention for the Unification of Certain Rules Relating to Bills of Lading, August 25, 1924 (the "Hague Rules"); the Protocol to Amend the Hague Rules, February 23, 1968 ("Hague-Visby Rules"); the United States Carriage of Goods by Sea Act, 46 U.S.C. App. § 1910.

be applicable (hereinafter referred to as the “International Rules”).

(b) For carriage and/or Services to which the International Rules described in Section 5(a) do not apply, Omni, subject to the other conditions and limitations of liabilities set forth in these Terms and Conditions, shall have a limitation of liability for any loss, damage or injury to shipments based on a released value of (i) U.S. \$20.00 per kilo for lost or damaged international air shipments, (ii) U.S. \$500.00 per container, shipping unit, or LCL for ocean shipments; (iii) U.S. \$0.50 per pound for domestic shipments in the United States or (iv) such other value established by law as may be applicable for domestic shipments in a country other than the United States, except that Omni shall have no liability for any loss, damage or injury caused by any of the following: nuclear activity (meaning nuclear reaction, nuclear radiation, or radioactive contamination, whether deliberate or accidental, controlled or uncontrolled or whether it contributed to or aggravated a covered loss or damage); terrorism; hidden or latent defects; asbestos (including loss or clean up caused by or resulting from asbestos or asbestos containing material); the presence, release, discharge or dispersal of pollutants; leakage, evaporation or shrinkage; chipping; denting; bruising; loss of weight; mechanical or electrical derangement; breakage of glass or similar fragile property containing panes of glass; scented property; products that are discolored, soured or changed in flavor; normal wear and tear or cosmetic denting, marring, chipping, or scratching to packaging; insufficient or unsuitable packaging material or preparation of goods being shipped; a defect or vice in the freight; voluntary removal or disappearance of the Cargo whether by fraudulent scheme, trick, device or false pretense; or any Force Majeure event.

(c) Omni shall have no liability for Cargo loss, damage, or shortage except to the extent caused by Omni's negligence or willful misconduct. Omni's total liability for a shipment, regardless of the country of origin, the country of delivery, or the modality of transport, shall be further limited to, and shall never exceed, a maximum amount of U.S. \$50.00 per shipment or transaction (except that Omni's liability for an ocean

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shipment shall be a maximum of U.S. \$500.00 per container or customary freight unit, regardless of whether the Cargo is on deck or below deck) unless Customer and Omni both agree in writing to exceed this maximum limitation of Cargo liability and a Declared Value is requested by Customer in writing and accepted by Omni for which an additional prorated surcharge will apply.

(d) Except as specifically set forth herein, Omni makes no express or implied warranties in connection with its Services and all warranties, statutory, express, or implied, are disclaimed to the fullest extent permitted by law.

(e) Notwithstanding anything in these Terms and Conditions to the contrary, in no event shall Omni (or any of Omni's affiliates, officers, directors, employees, agents or assigns) ever be liable to Customer (or to any of Customer's affiliates, officers, directors, employees, agents, assigns, customers, clients, shippers, or consignees) for delay damages or for any consequential, incidental, punitive, special, exemplary, or indirect damages, including any damages for loss of reputation, lost profits, or loss of business or business opportunities, by virtue of any claim or cause of action asserted under any statute, in tort, pursuant to any contract, under common law, or otherwise, even if Omni has been advised of the possibility of such damages.

6. Claims for Loss or Damage to Cargo.

(a) All claimed damage for lost or damaged Cargo must arise from identifiable transportation-related incidents. Customer or Customer's consignee, as applicable, must thoroughly inspect each shipment for count and condition and make applicable notations of any damage, loss/shortage, or signs of tampering directly on the delivery receipt Documentation. **All damages and/or shortages must be recognized and noted by Customer in writing at delivery, and, in any event, any damages or shortages, including any concealed damages or shortages, must be communicated by Customer to Omni within seventy-two (72) hours of delivery of the affected shipment except where modified by Section 6(b) below. The failure of Customer to give Omni notice as required**

 in this Agreement of any shortage of or damage to any shipment shall constitute a complete defense to any claim, lawsuit or other action asserted or commenced by Customer against Omni arising from or relating to any Service. (TEL:+186624AIR-OMNI)

(b) A written claim for loss or damage to Cargo setting forth the specific amount of the damage claimed, together with Documentation that supports the calculation of damages relating to such claim (hereinafter a "Claim"), must be received by Omni within the following time periods: (i) a Claim involving a U.S. shipment by truck or rail must be received by Omni within nine (9) months from the date of delivery or the date of loss, whichever is earlier; (ii) a Claim involving a Canadian shipment must be received by Omni within the earlier of: (x) one hundred twenty (120) days from the date of delivery (or of the date of anticipated delivery in the event of non-delivery) of a rail or intermodal shipment or any such deadline set forth in the applicable underlying carrier's tariff, issued bill of lading, or transport document, or (y) within sixty (60) days from the date of delivery (or of the date of anticipated delivery in the event of non-delivery) for shipments involving motor carriage, or in the case of intermodal shipments, where the Cargo loss or damage occurs while the shipment is in the custody and control of the motor carrier; (iii) a Claim involving loss or damage occurring during an ocean shipment must be received by Omni before or upon removal of the Cargo or within three (3) days following removal if the loss is not apparent; (iv) a Claim for loss or damage occurring during a shipment by air in the U.S. must be received by Omni within three (3) days of delivery; (v) a Claim for loss or damage occurring during an international shipment by air must be received by Omni within fourteen (14) days of delivery for damage and within one hundred twenty (120) days from the issuance of an air bill for notice of non-delivery.

(c) **Failure of Customer to give Omni written notice of a Claim in conformity with Section 6 (a) and (b) above within the specified time period will prevent Customer from recovering on the Claim and will constitute a complete defense and bar to any suit or action by Customer (and anyone claiming through or under Customer) to recover damages arising from or relating to that Claim.**

 (d) All lawsuits against Omni for loss, damage, or injury to Cargo must be filed and properly served on Omni as follows: (i) for a Claim arising out of ocean transportation, within one (1) year from the date of delivery or the date of loss, whichever is earlier; (ii) for a Claim arising out of air transportation, within two (2) years from the date of delivery or the date of loss, whichever is earlier; (iii) for a Claim arising out of the preparation and/or submission of any import entry, within seventy five (75) days from the date of liquidation of the entry; and (iv) for any and all other Claims of any other type, within two (2) years from the date of delivery or the date of loss, whichever is earlier. **Failure to file suit within the prescribed time period will preclude Customer from recovering any damages arising from or relating to the Claim made the basis of the lawsuit.**

(e) Omni's liability for lost, damaged or injured Cargo, other than "Used Goods" as defined in Section 6(f) below, shall be determined based upon the actual replacement cost of the lost or damaged Cargo.

(f) Subject to the other limitations and conditions of liability set forth in these Terms and Conditions, Omni's liability for lost, damaged, or injured *used* goods, articles, or Cargo ("Used Goods") shall be determined based upon the actual cash value of such lost, damaged, or injured Used Goods; however, no claim will be paid for rust, oxidation, deterioration, chipping, scratching, denting, twisting, bending and electrical or mechanical derangement of Used Goods.

7. Insurance.

Unless requested to do so in writing and confirmed to Customer in writing, Company is under no obligation to procure insurance on Customer's behalf. In all cases, Customer shall pay all premiums and costs in connection with procuring requested insurance. Company does not undertake or warrant that insurance can or will be placed. If placed, insurance will be effected with one or more insurance companies or other underwriters to be selected by Company. Any insurance placed shall be governed by the certificate or policy issued and will only be effective when accepted by such insurance companies and underwriters. Insurance cover procured by

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Company will be assessed at a rate negotiated between the parties separate from any freight charges. Insured value is not to exceed the actual value of the Cargo. Shipments must be packaged to withstand the normal hazards of transportation for any claim to be valid. In the event Customer does not elect to insure all or part of a shipment, Company's liability for any losses, damages or delays to such shipment shall be limited in accordance with the provisions relating to limitation of liability in these Terms and Conditions.

8. Subcontracting.

Omni may subcontract or broker any or all of the Services to be provided to, for, or at the request of Customer. Customer acknowledges and agrees that Omni may arrange for or use third party Service Providers to provide the Services.

9. No Liability For The Selection or Services of Third Parties and/or Routes.

(a) Unless Services are performed by persons or firms engaged pursuant to express written instructions from the Customer that Omni accepts in writing, Omni shall use reasonable care in its selection of third parties and in selecting the means, route and procedure to be followed in the handling, transportation, clearance and delivery of the shipment. Advice by Omni that a particular person or firm has been selected to render Services with respect to the Cargo shall not be construed to mean that Omni warrants or represents that such person or firm will render such Services, nor does Omni assume responsibility or liability for any action(s) and/or inaction(s) of such third party Service Provider and/or their agents. Furthermore, Omni shall not be liable for any delay or loss of any kind which occurs while a shipment is in the custody or control of a third party or the agent of a third party. All claims in connection with the act or omission of a third party shall be brought solely against such party and/or its agents. In connection with any such claim, Omni shall reasonably cooperate with the Customer and Customer shall be liable for any charges or costs incurred by Omni relating thereto.

(b) Except as specified in writing by Customer and accepted in writing by Omni, Omni and any Service Provider retained by Omni to provide Services may at any time, with or without notice to Customer, use any means of transport or storage whatsoever; load or carry the Cargo on any vessel; transfer the Cargo from one conveyance to another by any means of transport; unpack, remove, and/or repack any Cargo loaded or stuffed into any container; proceed at any speed and by any route; load and/or unload Cargo at any place; and take other actions within the discretion of Omni and/or the Service Providers to perform or provide the Services.

(c) With regard to ocean transportation, Omni and/or any Service Provider retained by or through Omni has the right to permit the vessel to proceed without pilots, to tow or be towed, to be dry docked, to carry livestock, and to carry hazardous materials or dangerous goods. The Service Provider providing ocean Services has the right to store or carry the Cargo on deck or under deck without notice to Customer. **Omni is not liable in any capacity for non-delivery, misdelivery, delay, or loss of or damage to Cargo due to a vessel's unseaworthiness.**

10. **Quotations Not Binding.**

Quotations as to fees, rates of duty, freight charges, insurance premiums or other charges given by Omni to the Customer are for informational purposes only and are subject to change without notice. No quotation shall be binding upon Omni unless Omni agrees in writing to undertake the handling or transportation of the shipment at a specific rate or amount set forth in the quotation and payment arrangements are agreed to between Omni and the Customer.

11. **Warehousing Requirements and Limitations of Liability.**

(a) Tendered for Storage. All goods for storage shall be delivered to an Omni warehouse properly marked and packaged for storage and handling. Customer shall furnish at or prior to such delivery, a manifest showing marks, brands, or sizes to be kept and accounted for separately, and the class of storage and other Services desired.

(b) Storage Period and Charges. Unless otherwise agreed in writing, all charges for storage are per package or other agreed unit per month. Storage charges become applicable on the date the Service Provider acting as a warehouseman accepts care, custody, and control of the goods, regardless of the unloading date or the date of issue of a warehouse receipt. Except as provided in the following sentence, a full month's storage charge will apply to all goods received between the first and the fifteenth day, inclusive, of a calendar month, and one-half month's storage charge will apply on all goods received between the sixteenth and the last day of the month. When mutually agreed in writing a storage month shall extend from a date in one calendar month to, but not including, the same date of the next and all succeeding months. All storage charges are due and payable on the first day of each storage month.

(c) Company Liability. Omni and any Service Provider will only be liable, subject to the limits of liability set forth in Section 11(d) below, for loss of or injury to stored goods when caused by the failure of Omni or the Service Provider, acting as warehouseman, to exercise such care in regard to the stored goods as a reasonably careful person would exercise under like circumstances. Omni and any Service Provider acting as a warehouseman will have no liability for damages due to loss of or injury to stored goods that could not have been avoided by the exercise of such care. **Stored goods are not insured by Omni or any Service Provider, acting as warehouseman or otherwise, against loss or damage, however caused, except to the extent, if applicable, that Customer and Omni agree in a signed writing that such insurance will be maintained and Customer agrees to pay for such insurance as required under the terms of the executed agreement.**

(d) Limitation on Amount of Liability. The total liability of Omni and any Service Provider, acting as warehouseman, for physical loss of or damage to stored goods will be limited to the lowest of the following methods of valuation: (i) the cost of repairing damaged goods; (ii) the cost of replacing lost or damaged goods with material of like kind and quality; (iii) the difference between the actual cash value of damaged goods at the time of receipt and at the time of delivery; (iv) the actual cash value of such goods at the time and place of the loss; or

(v) a value of \$0.25 per pound per article (if so declared) or the lump sum value declared on the entire lot of stored goods subject to a maximum of \$500.00 per occurrence. Where loss of or damage to stored goods is not due to the fault of Omni or any Service Provider, acting as warehouseman, as described in Section 11(c) above, Customer shall be responsible for the cost of removing and disposing of such goods and the cost of any environmental cleanup and site remediation resulting from the loss of or damage to the goods.

(e) No Liability for Consequential Damage. Omni and any Service Providers, acting as warehousemen, are not liable for delay damages or for any consequential, incidental, punitive, special, exemplary, or indirect damages, including any damages for loss of reputation, lost profits, or loss of business or business opportunities, by virtue of any claim or cause of action asserted under any statute, in tort, pursuant to any contract, under common law, or otherwise, even if Omni has been advised of the possibility of such damages.

12. **Advancing Money.**

Unless previously agreed in writing by Company, Company shall not be obliged to incur any expense, guarantee payment or advance any money in connection with the importing, forwarding, transporting, storing or cooperating of goods, unless amounts are prepaid to Company by Customer. Company shall be under no obligation to advance freight charges, customs duties or taxes on any shipment, nor shall any advance by Company be construed as a waiver of the provisions hereof.

13. **Indemnification/Hold Harmless.**

Except to the extent caused by Omni's negligence or willful misconduct, Customer agrees to indemnify and hold Omni and Omni's affiliates, employees, officers, managers, directors, members, agents, and contractors (the "Omni Parties") harmless from and against any actions, claims, causes of action, losses, liabilities, damages, penalties, fines, expenses, and costs (including attorneys' fees) caused by, arising from, or relating to: (i) the provision of Services; (ii) any act or omission of Customer which violates any laws of the United States, any state, or any country in which Services are rendered for or on behalf of Customer or any

consignee of Customer; (iii) Customer's negligence or willful misconduct; and/or (iv)

Customer's breach of any of Customer's duties or responsibilities as described in these Terms and Conditions. In the event that any claim, suit or proceeding is brought against Omni, it

shall give notice in writing to the Customer by mail at its address on file with Omni.

14. C.O.D. or Cash/Collect Shipments.

Company shall use reasonable care regarding written instructions relating to "Cash/Collect on Delivery (C.O.D.)" shipments, bank drafts, cashier's and/or certified checks, letter(s) of credit, and other similar payment documents and/or instructions regarding collection of monies, but shall have not liability if the bank or consignee refuses to pay for the shipment.

15. Costs of Collection.

In any dispute involving monies owed to Company, Omni shall be entitled to recover all costs of collection, including reasonable attorney's fees. Customer agrees that Omni may charge and recover interest on any amount due under any invoice for Services that is not paid when due at the rate of fifteen percent (15%) per annum, or the highest rate allowed by law, whichever is less, until payment of the invoice is received in full.

16. General Lien and Right To Sell Customer's Property.

(a) Omni shall have a general and continuing lien on any and all property of Customer coming into Omni's actual or constructive possession or control for monies owed to Omni with regard to the shipment on which the lien is claimed, a prior shipment(s) and/or both;

(b) Omni shall provide written notice to Customer of its intent to exercise such lien, the exact amount of monies due and owing, as well as any on-going storage or other charges.

Customer shall notify all parties having an interest in its shipment(s) of Omni's rights and/or the exercise of such lien.

(c) Unless, within thirty days of receiving notice of lien, Customer posts cash or letter of credit at sight, or, if the amount due is in dispute, an acceptable bond equal to 110% of the value of the total amount due, in favor of Omni, guaranteeing payment of the monies owed, plus all storage charges accrued or to be accrued, Omni shall have the right to sell such shipment(s) at public or private sale or auction and any net proceeds remaining thereafter shall be refunded to Customer.

17. No Duty To Maintain Records For Customer.

Customer acknowledges that pursuant to Sections 508 and 509 of the Tariff Act, as amended, (19 USC §1508 and 1509) it has the duty and is solely liable for maintaining all records required under the Customs and/or other Laws and Regulations of the United States. Unless otherwise agreed to in writing, Omni shall only keep such records that it is required to maintain by applicable statute(s) and/or regulation(s), but does not act as a “record keeper” or “record keeping agent” for Customer.

18. Obtaining Binding Rulings, Filing Protests, etc.

Unless requested by Customer in writing and agreed to by Omni in writing, Omni shall be under no obligation to undertake any pre- or post-customs release action, including, but not limited to, obtaining binding rulings, advising of liquidations, filing of petition(s), and/or protests, etc.

19. Preparation and Issuance of Bills of Lading.

Where Company prepares and/or issues a bill of lading, Company shall be under no obligation to specify thereon the number of pieces, packages and/or cartons, etc., unless specifically requested to do so in writing by Customer or its agent and Customer agrees to pay for same. Company shall rely upon and use the Cargo weight supplied by Customer. Any terms and conditions printed on transportation documents such as bills of lading or delivery receipts will not change or supersede these Terms and Conditions of Service.

20. Transportation Security Administration.

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Customer acknowledges that Company, to the extent it serves as an indirect air carrier, is required by the United States Transportation Security Administration ("TSA") to maintain an air cargo security program. Customer hereby authorizes and consents to all cargo tendered for transportation by air to be screened as required by TSA regulations. Customer shall disclose to Company if it is acting as agent, representative, broker, carrier, or other freight intermediary for any other person or entity, and shall assist Company to comply with TSA requirements by enabling Company to obtain all necessary documents from such other person or entity, or otherwise qualify, such person or entity.

21. Compensation of Company.

Payment terms are net due on receipt. The compensation of Omni for all its Services shall be included with and is in addition to the rates and charges of all Service Providers selected by Omni to transport and deal with the Cargo and such compensation shall be exclusive of any brokerage, commissions, dividends, or other revenue received by Omni from carriers, insurers, and others in connection with the shipment. On ocean exports, upon request, Omni shall provide a detailed breakout of the components of all charges assessed and a true copy of each pertinent document relating to these charges.

22. Consent to search.

Customer consents to a search of any shipment by Omni and/or any Service Provider.

23. No Modification or Amendment Unless Written.

These Terms and Conditions of Service may only be modified, altered or amended in writing signed by both Customer and Company. Any attempt to unilaterally modify, alter or amend same shall be null and void.

24. Severability.

In the event any provision in these Terms and Conditions is determined by a court to be invalid and/or unenforceable, the remainder hereof shall remain in full force and effect.

25. **Governing Law; Consent to Jurisdiction and Venue.**



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These terms and conditions of Service and the relationship of the parties shall be construed according to the laws of the State of Texas without giving consideration to any principles of conflict of law. Customer and Omni:

(a) irrevocably consent to the jurisdiction of the United States District Court and the State courts of Texas and agree that any action relating to these Terms and Conditions and/or any Services performed or provided by, through, or under Omni shall only be brought in such courts;

(b) consent to the exercise of in personam jurisdiction by said courts; and

(c) further agree that any action to enforce a judgment may be instituted in any jurisdiction.

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Semiconductor Logistics (<https://omnilogistics.com/industry-expertise/semiconductor-logistics/>)

The Omni Blog (<https://omnilogistics.com/blog/>)



ALL IN. (<https://omnilogistics.com>)

Business Terms (<https://omnilogistics.com/business-terms/>)

Privacy Policy (<https://omnilogistics.com/privacy-policy/>) Sitemap (<https://omnilogistics.com/sitemap/>)

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EXHIBIT C

Invoice	Invoice	Invoice	Invoice	Invoice	Invoice	Invoice
1535503	1536231	1541871	32807	7203093	7204911	7205142
1535502	1536230	1541873	1	7203104	7204910	7204003
1535501	1536229	1541874		7203105	7204907	7204004
1535500	1536228	1541875		7203107	7204903	7204005
1535499	1536226	1541877		7203102	7209832	7204012
1535508	5	1541879		7203116	5	7205135
1535507		7210094		7203118		7204006
1535506		7210096		7203113		7204007
1535505		7210100		7203243		7204015
1535504		7210101		7203252		7204018
1536214		7210104		7203255		7204002
1536224		7210105		7203257		7204181
1536216		721106		7203244		7205689
1536221		1541880		7203251		7204088
1536222		1541881		7203256		7204089
1536223		1541882		7203253		7204170
1538417		1541883		7203247		7204179
1538418		1541884		7203245		7205685
1538419		18		7203246		7205688
1538420				7203254		7205692
1538421				7203250		7210852
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1538423				7203248		7210840
1538425				7203384		7210839
1538426				7203381		7210830
1538427				7203387		7210826
1538428				7203390		7210843
1538429				7203379		7210947
1538430				7203385		7210946
1538431				7203380		7210940
7203142				7203393		7210944
7203140				7203396		7210952
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7203139				7203399		7210948
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7203232				7203386		7210953
7203133				7203389		7210958
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EXHIBIT D

To: David Ikemoto[dikemoto@omnilogistics.com]; Beza Basiri[bbasiri@thompsonpipegroup.com]
Cc: Diego Rivera[Diego.Rivera@thompsonpipegroup.com]; Oscar Milla[omilla@omnilogistics.com]
From: Alex Heaton[/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=CD4984BD115B4AB899DF6322178910D7-ALEX HEATON]
Sent: Thur 5/19/2022 4:47:22 PM (UTC)
Subject: RE: Otek - TPG

Dang.

Yes, Jimmy from M19 is calling, livid because TPG/Omni forced him to take receipt of containers Thurs/Fri. He put together a crew and has been on standby all morning with no comms.

Omni VP refusing to perform/deliver? Holding containers as ransom?
I will call Beza as well



ALEX HEATON Project Manager
mobile 225.803.1101
web thompsonpipegroup.com
1003 MacArthur Blvd | Grand Prairie, TX 75050

From: David Ikemoto <dikemoto@omnilogistics.com>
Sent: Thursday, May 19, 2022 10:35 AM
To: Alex Heaton <aheaton@thompsonpipegroup.com>
Cc: Diego Rivera <diego.rivera@thompsonpipegroup.com>; Oscar Milla <omilla@omnilogistics.com>
Subject: Re: Otek - TPG

Hi Alex,

I know Beza is in contact with our VP,
Unfortunately, this is above our head.
Please note that this hold pertains to all of your active projects.

David Ikemoto | Omni Logistics
Director of International Operations
15901 Hawthorne Blvd. | Suite 490 | Lawndale, CA 90260
Tel: +1 818-464-3742 | Cell: +1 310-720-8695



On May 19, 2022, 8:33 AM PDT omilla@omnilogistics.com wrote:

Hello Alex,

I just wanted to give you a heads up that your account is currently on hold and we will not be delivering any containers to your contractors until the hold is released. Because of this I'm not sure I should be advising your contractors directly. Do you think it's best that you advise them not to expect to receive any containers for the time being?

Oscar Milla | Omni Logistics
Sr. Manager International Operations
15901 Hawthorne Blvd. | Suite 490 | Lawndale, CA 90260
Tel: +1 818-464-3742 | Cell: +1 310-678-5879

On May 18, 2022, 9:55 AM PDT ahendon@thompsonpipegroup.com wrote:

CAUTION: Email from external sender.

Thank you for the recap David
Please keep us apprised of completions



ALEX HEATON Project Manager
mobile 225.803.1101
web thompsonpipegroup.com
1003 MacArthur Blvd | Grand Prairie, TX 75050

From: David Ikemoto <dikemoto@omnilogistics.com>
Sent: Wednesday, May 18, 2022 11:47 AM
To: Alex Heaton <ahendon@thompsonpipegroup.com>
Cc: Diego Rivera <diego.rivera@thompsonpipegroup.com>; Oscar Milla <omilla@omnilogistics.com>
Subject: Re: Otek - TPG

Hi Alex,

Please see the below

Caulks Creek - BGA0324111 - DELIVERED
Wastewater - HLCUBO2220415587 - 3 containers have arrived to the rail, we are still awaiting the arrival of the others
Jefferson Hood - BGA0322376 - DELIVERED
El Paso - BGA0322661 - Still awaiting connection from Houston TX to El Paso TX
Bay Park - BGA0324110 - 11 DELIVERED by Omni // 14 handled by MCM
Bay Park - BGA0323249 - 17 DELIVERED by Omni // 1 handled by MCM
Bay Park - BGA0326651 - all 18 will be handled by MCM
Bay Park - BGA0326668 - all 18 will be handled by MCM
Bass Lake - Cancelled
Beck Branch - BGA0326084 - Delivery on HOLD
Little Hope Creek - BGA0322662 - DELIVERED

I would recommend that you and Diego speak with Bezad in regards to Wastewater and Beck Branch, I understand he is in contact with our Vice President in regards to account status.

Thanks

David Ikemoto | Omni Logistics
Director of International Operations
15901 Hawthorne Blvd. | Suite 490 | Lawndale, CA 90260
Tel: +1 818-464-3742 | Cell: +1 310-720-8695

CAUTION: Email from external sender.

Hello David, Oscar,

May I do a round up on the following projects – remaining containers?
Will monitor these to a full completion across all projects

Project	MBL	Containers	Destination	
Caulks Creek	BGA0324111	6	St Louis MO	complete? Please confirm
Wastewater	HLCUBO2220415587	25	Ypsilanti MI	
Jefferson Hood	BGA0322376	8	Seattle WA	
El Paso	BGA0322661	2	El Paso TX	delivery today? pls confirm
Bay Park	BGA0324110	25	New York NY	please recap how many did C
Bay Park	BGA0323249	18	New York NY	please recap how many did C
Bay Park	BGA0326651	18	New York NY	please recap how many did C
Bay Park	BGA0326668	18	New York NY	please recap how many did C
Bass Lake	Pending	1	Osseo Mn	Cancelled, no fees
Beck Branch	BGA0326084	14	Plano TX	Delivering this week per ema
Little Hope Creek	BGA0322662	3	Charlotte NC	Complete



YOUR PARTNER
SINCE 1987

ALEX HEATON Project Manager
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